

Plaintiff King asserts that Counsel Lucas “Lied to the court that he made an effort to resolve this case with me.” He also appears to allege dishonesty in court proceedings outside the answer where Counsel Lucas “blam[ed him] for [Defendants’] attorney not showing up,” stating that “work that [Plaintiff King] performed was done ten years ago,” and further stating “that [Plaintiff King] was estranged from” Defendant Redd.

The timing for a motion under section 128.7 requires that the motion be served, but not filed for at least 21 days to allow the other party to correct their conduct. If the conduct is not changed or the offending motion withdrawn after 21 days then the party requesting sanctions may file their motion. (Code of Civil Procedure section 128.7(c)(1); *Barnes v. Department of Corrections* (1999) 74 Cal.App.4th 126, 130.) Here, there is no indication of when Plaintiff King served the motion, but it was filed October 6, 2025. There is therefore no indication Plaintiff complied with the procedural requirements of section 128.7.

Moreover, Plaintiff King has filed a “Declaration” but it contains no actual facts. It appears to be a template that Plaintiff King completely failed to update. That would be less of an issue if it contained *any* facts relevant to the motion for sanctions—i.e. statements under penalty of perjury demonstrating that Counsel Lucas did, indeed, mislead the Court in any material way. Given that there is no competent evidence that Counsel Lucas has violated section 128.7(b), this Motion is **denied**.

8. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
HEARING ON DEMURRER TO: COMPLAINT OR IN ALT JUDGMENT ON THE PLEADINGS
FILED BY: EMINENT CAPITAL INVESTMENTS LLC
TENTATIVE RULING:

Before the Court is a demurrer filed by defendants, SV Quick Capital Corporation and Eminent Capital Investments, LLC. The proofs of service state the complaint was personally served on defendants in May of 2025. In October of 2025, defendants responded by filing the present demurrer.

Code of Civil Procedure section 430.41 sets forth the meet and confer requirements for a demurrer. Subdivision (a) states that, before filing a demurrer, “the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

Subdivision (a)(2) addresses timing: It requires the meet and confer happen “at least 5 days before the date the responsive pleading is due,” but also allows for a demurring party to file a declaration in order to unilaterally obtain additional time to meet and confer. Here, defendants failed to comply with the timing requirements as no meet and confer efforts were initiated until several months later.

Still, plaintiff did not take any defaults and the Court will consider the demurrer (which is not properly a “motion for judgment on the pleadings,” despite the identical legal standard, because no answer has been filed at this time).

Notwithstanding the Court's willingness to consider the demurrer, the good faith meet and confer requirement outlined in Code of Civil Procedure section 430.41 has not been met.

With the moving papers, a demurring party must file and serve a declaration stating either:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

(Code Civ. Proc., § 430.41 (a)(3).)

Defendant here filed a Declaration of Terance Orme, which attaches communications with plaintiff's counsel. From the communications, it appears that plaintiff's counsel did respond to Orme's meet and confer request. Specifically, counsel stated that she expected to be ready to meet and confer on "Tuesday," and asked if that worked for Orme. Orme then apparently did not follow up. Parties thus did not meet and confer. Nor did the party who filed the pleading fail to respond to the meet and confer request. Accordingly, defendants' declaration concerning such meet and confer is deficient and defendants have not complied with the statutory requirements.

While "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer" (Code Civ. Proc., § 430.41 (a)(4)), the Court elects to continue the hearing to allow parties to carry out their obligations in this respect.

The demurrer hearing is continued to April 9, 2026 in this Department at 9:00 a.m. By March 26, 2026, parties shall meet and confer by one of the methods set forth in the above statute. By April 2, 2026, defendants shall file a declaration outlining any such efforts, as well as describing agreements reached, if any.

9. 9:00 AM CASE NUMBER: C25-02081

CASE NAME: JILL REBIEJO VS. FAYE ABBES

***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION AND APPOINTMENT OF RECEIVER**

FILED BY: ABBES, FAYE KRISTAN

TENTATIVE RULING:

Before the Court is Defendant and Cross-Complainants Faye Abbes, Ronald Abbes, and Kevin Lettire (collectively, "Defendants" or "Cross-Complainants")'s motion for preliminary injunction and appointment of receiver (the "Motion"). The Motion is opposed by Plaintiff and Cross-Defendant Jill Rebiejo ("Cross-Defendant" or "Rebiejo").

For the following reasons, the Motion is **denied**.

Brief Factual and Procedural Background

This is a business dispute related to the ownership and operation of the restaurant Pete's Brass Rail & Car Wash. Plaintiff has a 50% ownership interest in Pete's 3 G LLC along with Defendant Faye Abbes. The LLC owns Pete's Brass Rail & Car Wash. Plaintiff manages both the LLC and the Restaurant.